

**NOTICE OF LODGMENT**  
**AUSTRALIAN COMPETITION TRIBUNAL**

This document was lodged electronically in the AUSTRALIAN COMPETITION TRIBUNAL and has been accepted for lodgment pursuant to the Practice Direction dated 13 July 2026. Filing details follow and important additional information about these are set out below.

**Lodgment and Details**

|                  |                                                     |
|------------------|-----------------------------------------------------|
| Document Lodged: | Uncontested Findings                                |
| File Number:     | ACT 1 of 2026                                       |
| File Title:      | APPLICATION BY COLES SUPERMARKETS AUSTRALIA PTY LTD |
| Registry:        | VICTORIA – AUSTRALIAN COMPETITION TRIBUNAL          |



REGISTRAR

Dated: 2/10/2026 3:44 PM

**Important information**

This Notice has been inserted as the first page of the document which has been accepted for electronic filing. It is now taken to be part of that document for the purposes of the proceeding in the Tribunal and contains important information for all parties to that proceeding. It must be included in the document served on each of those parties.

**COLES SUPERMARKETS AUSTRALIA PTY LIMITED APPLICATION FOR REVIEW  
OF AUSTRALIAN COMPETITION AND CONSUMER COMMISSION MERGER  
AUTHORISATION DETERMINATION (MN-01068)**

**Commonwealth of Australia**  
***Competition and Consumer Act 2010***

**In the Australian Competition Tribunal**

**File No. ACT 1 of 2026**

**Re** Application for review of a determination made by the Australian Competition and Consumer Commission under subsection 51ABZE(1) of the *Competition and Consumer Act 2010*

**JOINT DOCUMENT IDENTIFYING ALL MATERIAL FINDINGS OF FACTS,  
ECONOMICS AND LAW SET OUT IN THE ACCC'S REASONS FOR DETERMINATION  
THAT ARE NOT CONTESTED BY ANY PARTICIPANT ON THE REVIEW**

**2 October 2026**

**(Direction 19 in the Directions made on 21 July 2026)**

**Confidentiality Key:**

This document contains confidential information which is indicated as follows:

1. [Confidential and governed by the Confidentiality Regime made by Justice O'Bryan on 21 July 2026]
2. [Highly Confidential and governed by the directions of Justice O'Bryan dated 10 August 2026, where ALDI Stores (A Limited Partnership) is not a Confidentiality Claimant]

| ACCC<br>Reasons<br>Ref | Paragraphs that are uncontested (extract)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
|------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 2.1                    | Coles Supermarkets proposes to acquire a leasehold interest (the <b>Lease</b> ) over land at Lots 95-106 Great Eastern Highway, in Somerville, WA (the <b>Property</b> ) for the purpose of opening a supermarket and liquor store. Somerville is a suburb of Kalgoorlie–Boulder ( <b>Kalgoorlie</b> ).                                                                                                                                                                                                                                                                    |
| 2.2                    | Coles operates 860 supermarkets nationwide. Coles' standard offering entails large-format supermarkets that are either freestanding or located in shopping centres. Its large-format stores typically offer standard grocery items, as well as bakery and deli services. Coles also operates smaller format 'Coles Local' supermarkets with a comparatively smaller range of grocery items.                                                                                                                                                                                |
| 2.3                    | Coles operates an online grocery shopping and delivery platform named 'Coles Online', which allows consumers to shop for groceries with either home delivery or pick up from 'Click&Collect' locations at existing Coles stores.                                                                                                                                                                                                                                                                                                                                           |
| 2.4                    | Coles also operates three different chains of liquor stores nationally, under the brand names Liquorland, First Choice Liquor Market (soon to be re-branded as Liquorland Warehouse) and Vintage Cellars (soon to be rebranded as Liquorland Cellars), and other subsidiaries.                                                                                                                                                                                                                                                                                             |
| 2.5                    | Coles is one of the two largest full-line supermarket chains in Australia. Coles earned annual revenue of approximately \$40.0b in FY25 from its supermarket operations, at a gross margin of [REDACTED]%. ...                                                                                                                                                                                                                                                                                                                                                             |
| 2.6                    | The Property is currently vacant and undeveloped but M Holdings 4 Pty Ltd, owned by M/Group, is proposing to develop a neighbourhood centre there.                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 2.8                    | The Proposed Supermarket will be a large format supermarket, with an SFA of 2,800m <sup>2</sup> and a Liquorland store. Coles submits it expects the store will open around [REDACTED]. As the site is currently vacant and does not have development approval, the supermarket is unlikely to open before then.                                                                                                                                                                                                                                                           |
| 2.9                    | Grocery retailing by supermarkets is characterised by a mix of business models and store formats that capture different shopping occasions and customer preferences. In Australia, most consumers buy most of their groceries at supermarkets.                                                                                                                                                                                                                                                                                                                             |
| 2.10                   | <p>There are many different business models and store formats for supermarkets. For illustrative purposes, supermarkets can broadly be categorised as:</p> <ul style="list-style-type: none"> <li>• <b>Full-line supermarkets:</b> These are stores with a large retail floor space, ... that sell a full range of grocery items ... across all grocery categories.</li> <li>• <b>Small-format supermarkets:</b> These are stores with a smaller retail floor space ... that sell a moderate range of fresh and packaged groceries, ... across most categories.</li> </ul> |

| ACCC<br>Reasons<br>Ref | Paragraphs that are uncontested (extract)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
|------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                        | <ul style="list-style-type: none"> <li>• <b>Hard discounters:</b> These offer a ... range of groceries covering most categories, focusing on private label products and with an everyday low-price strategy.</li> <li>• <b>Subscription warehouses:</b> These are very large, "big box" warehouse stores with an exclusive membership model (i.e., consumers must sign up to a paid membership to shop there).</li> <li>• <b>Premium gourmet:</b> These offer a comparatively smaller range of fresh and packaged groceries with a focus on quality food range, often including ready-to-eat options.</li> </ul> |
| 2.11                   | <p>Coles and Woolworths Group Limited (<b>Woolworths</b>) are Australia's two largest full-line supermarket operators, and the only ones with broad national coverage. They are vertically integrated, in that they procure groceries directly from suppliers, manage their own distribution and logistics networks, and operate retail stores under their respective banners. Coles and Woolworths operate approximately 860 and 1,117 supermarkets in Australia, respectively. Coles and Woolworths generally set prices and product ranges on a state-wide or national basis. ...</p>                         |
| 2.12                   | <p>ALDI Stores (A Limited Partnership) (<b>ALDI</b>) is vertically integrated and operates a low-cost business model that enables it to offer groceries at a relatively low price (it is a hard discounter). ALDI entered Australia in 2001, and now operates approximately 600 supermarkets throughout Australia, excluding Tasmania and the Northern Territory. ALDI supermarkets are typically located in larger population centres, and offer a comparatively narrow range of products, with a focus on private label.</p>                                                                                   |
| 2.13                   | <p>Some independent supermarket operators are also vertically integrated, including Drakes Supermarkets, and Harris Farm Markets. Other independent supermarket operators have also vertically integrated further up the supply chain by growing their own fresh produce. Spudshed, for example, operates 19 stores in Western Australia, manages its own distribution network, and sources a portion of its fresh produce directly from farms it owns. This allows Spudshed to retain control over most pricing and ranging decisions and retain control of supply.</p>                                         |
| 2.14                   | <p>Many independent supermarkets (including those trading under the IGA banner) are supplied groceries by the wholesale distributor Metcash Limited (<b>Metcash</b>). Metcash owns and operates some supermarkets but is predominantly a grocery wholesaler to independent supermarkets. Independent supermarkets retain control over most pricing and ranging decisions and store operation. Metcash also provides marketing support services to some independent supermarkets operating under Metcash-owned banners (including IGA and Foodland).</p>                                                          |
| 2.15                   | <p>The IGA network is the largest grouping of independent supermarkets in Australia. Supermarkets within the IGA network fit into a range of store formats. ...</p>                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 2.18                   | <p>Each supermarket offers a value proposition to attract customers to their store and to purchase groceries when in their store. In this way, the diverse range of supermarket stores contributes to the degree of competition in any particular area.</p>                                                                                                                                                                                                                                                                                                                                                      |
| 2.19                   | <p>Competition between supermarkets in Kalgoorlie is influenced by the range of local supermarket offers and the degree of concentration. Given Coles, Woolworths and Metcash operate at a national level, competition in Kalgoorlie will also be influenced by the nature of competition and concentration</p>                                                                                                                                                                                                                                                                                                  |

| ACCC<br>Reasons<br>Ref | Paragraphs that are uncontested (extract)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                           |                                                                 |                           |                      |                                  |                      |                                  |          |                      |            |  |                             |  |  |  |     |                  |              |  |                             |  |  |  |     |                       |              |  |                             |  |  |  |     |                     |              |  |                             |  |  |  |     |                    |              |  |                            |  |  |  |     |                   |              |  |                          |  |  |  |     |               |              |  |                          |  |  |  |     |
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|                        | at the national level.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |                           |                                                                 |                           |                      |                                  |                      |                                  |          |                      |            |  |                             |  |  |  |     |                  |              |  |                             |  |  |  |     |                       |              |  |                             |  |  |  |     |                     |              |  |                             |  |  |  |     |                    |              |  |                            |  |  |  |     |                   |              |  |                          |  |  |  |     |               |              |  |                          |  |  |  |     |
| 2.22                   | The degree of concentration of supermarkets in local markets can also be assessed with reference to the number and size of particular operators' supermarkets. ...                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |                           |                                                                 |                           |                      |                                  |                      |                                  |          |                      |            |  |                             |  |  |  |     |                  |              |  |                             |  |  |  |     |                       |              |  |                             |  |  |  |     |                     |              |  |                             |  |  |  |     |                    |              |  |                            |  |  |  |     |                   |              |  |                          |  |  |  |     |               |              |  |                          |  |  |  |     |
| 2.23                   | Estimating the share of supply in the local areas around Coles' stores is not the same as estimating national shares for Coles across all local areas. The former may be higher than the latter because the former excludes the local markets in which Coles doesn't have a store. ...                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |                           |                                                                 |                           |                      |                                  |                      |                                  |          |                      |            |  |                             |  |  |  |     |                  |              |  |                             |  |  |  |     |                       |              |  |                             |  |  |  |     |                     |              |  |                             |  |  |  |     |                    |              |  |                            |  |  |  |     |                   |              |  |                          |  |  |  |     |               |              |  |                          |  |  |  |     |
| 2.31                   | <p>The locations of the 6 existing supermarkets in Kalgoorlie and the Proposed Supermarket are shown in Figure 3 below.</p> <p>Figure 3 Map of supermarkets in Kalgoorlie</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |                           |                                                                 |                           |                      |                                  |                      |                                  |          |                      |            |  |                             |  |  |  |     |                  |              |  |                             |  |  |  |     |                       |              |  |                             |  |  |  |     |                     |              |  |                             |  |  |  |     |                    |              |  |                            |  |  |  |     |                   |              |  |                          |  |  |  |     |               |              |  |                          |  |  |  |     |
| 2.34                   | <p>Table 3 sets out the broad characteristics of the 6 existing supermarkets and the Proposed Supermarket.</p> <p>Statement of Reasons   Coles – supermarket and liquor site in Kalgoorlie, WA (MN-01068)</p> <p><b>Table 3 Supermarkets in Kalgoorlie</b></p> <table><tr><th>Store Name</th><th>Driving Distance (Time) from Proposed Supermarket<sup>27</sup></th><th>Parties' estimates of SFA</th><th>Approx. SFA</th><th>Total SKUs</th><th>Revenue (\$m) (FY25)</th><th>Full Time Equivalent (FTE) staff</th><th>Category</th></tr><tr><td>Proposed Supermarket</td><td>0km (0min)</td><td></td><td>2,500 – 3,500m<sup>2</sup></td><td></td><td></td><td></td><td>...</td></tr><tr><td>Coles Kalgoorlie</td><td>3.9km (5min)</td><td></td><td>2,500 – 3,500m<sup>2</sup></td><td></td><td></td><td></td><td>...</td></tr><tr><td>Woolworths Kalgoorlie</td><td>3.8km (6min)</td><td></td><td>2,500 – 3,500m<sup>2</sup></td><td></td><td></td><td></td><td>...</td></tr><tr><td>Spudshed Kalgoorlie</td><td>6.6km (9min)</td><td></td><td>1,500 – 2,500m<sup>2</sup></td><td></td><td></td><td></td><td>...</td></tr><tr><td>O'Connor Fresh IGA</td><td>1.8km (3min)</td><td></td><td>1,000- 1,500m<sup>2</sup></td><td></td><td></td><td></td><td>...</td></tr><tr><td>Hannans FoodWorks</td><td>5.3km (7min)</td><td></td><td>700- 1,000m<sup>2</sup></td><td></td><td></td><td></td><td>...</td></tr><tr><td>IGA Lionel St</td><td>4.3km (6min)</td><td></td><td>500- 1,000m<sup>2</sup></td><td></td><td></td><td></td><td>...</td></tr></table> | Store Name                | Driving Distance (Time) from Proposed Supermarket <sup>27</sup> | Parties' estimates of SFA | Approx. SFA          | Total SKUs                       | Revenue (\$m) (FY25) | Full Time Equivalent (FTE) staff | Category | Proposed Supermarket | 0km (0min) |  | 2,500 – 3,500m <sup>2</sup> |  |  |  | ... | Coles Kalgoorlie | 3.9km (5min) |  | 2,500 – 3,500m <sup>2</sup> |  |  |  | ... | Woolworths Kalgoorlie | 3.8km (6min) |  | 2,500 – 3,500m <sup>2</sup> |  |  |  | ... | Spudshed Kalgoorlie | 6.6km (9min) |  | 1,500 – 2,500m <sup>2</sup> |  |  |  | ... | O'Connor Fresh IGA | 1.8km (3min) |  | 1,000- 1,500m <sup>2</sup> |  |  |  | ... | Hannans FoodWorks | 5.3km (7min) |  | 700- 1,000m <sup>2</sup> |  |  |  | ... | IGA Lionel St | 4.3km (6min) |  | 500- 1,000m <sup>2</sup> |  |  |  | ... |
| Store Name             | Driving Distance (Time) from Proposed Supermarket <sup>27</sup>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            | Parties' estimates of SFA | Approx. SFA                                                     | Total SKUs                | Revenue (\$m) (FY25) | Full Time Equivalent (FTE) staff | Category             |                                  |          |                      |            |  |                             |  |  |  |     |                  |              |  |                             |  |  |  |     |                       |              |  |                             |  |  |  |     |                     |              |  |                             |  |  |  |     |                    |              |  |                            |  |  |  |     |                   |              |  |                          |  |  |  |     |               |              |  |                          |  |  |  |     |
| Proposed Supermarket   | 0km (0min)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |                           | 2,500 – 3,500m <sup>2</sup>                                     |                           |                      |                                  | ...                  |                                  |          |                      |            |  |                             |  |  |  |     |                  |              |  |                             |  |  |  |     |                       |              |  |                             |  |  |  |     |                     |              |  |                             |  |  |  |     |                    |              |  |                            |  |  |  |     |                   |              |  |                          |  |  |  |     |               |              |  |                          |  |  |  |     |
| Coles Kalgoorlie       | 3.9km (5min)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |                           | 2,500 – 3,500m <sup>2</sup>                                     |                           |                      |                                  | ...                  |                                  |          |                      |            |  |                             |  |  |  |     |                  |              |  |                             |  |  |  |     |                       |              |  |                             |  |  |  |     |                     |              |  |                             |  |  |  |     |                    |              |  |                            |  |  |  |     |                   |              |  |                          |  |  |  |     |               |              |  |                          |  |  |  |     |
| Woolworths Kalgoorlie  | 3.8km (6min)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |                           | 2,500 – 3,500m <sup>2</sup>                                     |                           |                      |                                  | ...                  |                                  |          |                      |            |  |                             |  |  |  |     |                  |              |  |                             |  |  |  |     |                       |              |  |                             |  |  |  |     |                     |              |  |                             |  |  |  |     |                    |              |  |                            |  |  |  |     |                   |              |  |                          |  |  |  |     |               |              |  |                          |  |  |  |     |
| Spudshed Kalgoorlie    | 6.6km (9min)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |                           | 1,500 – 2,500m <sup>2</sup>                                     |                           |                      |                                  | ...                  |                                  |          |                      |            |  |                             |  |  |  |     |                  |              |  |                             |  |  |  |     |                       |              |  |                             |  |  |  |     |                     |              |  |                             |  |  |  |     |                    |              |  |                            |  |  |  |     |                   |              |  |                          |  |  |  |     |               |              |  |                          |  |  |  |     |
| O'Connor Fresh IGA     | 1.8km (3min)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |                           | 1,000- 1,500m <sup>2</sup>                                      |                           |                      |                                  | ...                  |                                  |          |                      |            |  |                             |  |  |  |     |                  |              |  |                             |  |  |  |     |                       |              |  |                             |  |  |  |     |                     |              |  |                             |  |  |  |     |                    |              |  |                            |  |  |  |     |                   |              |  |                          |  |  |  |     |               |              |  |                          |  |  |  |     |
| Hannans FoodWorks      | 5.3km (7min)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |                           | 700- 1,000m <sup>2</sup>                                        |                           |                      |                                  | ...                  |                                  |          |                      |            |  |                             |  |  |  |     |                  |              |  |                             |  |  |  |     |                       |              |  |                             |  |  |  |     |                     |              |  |                             |  |  |  |     |                    |              |  |                            |  |  |  |     |                   |              |  |                          |  |  |  |     |               |              |  |                          |  |  |  |     |
| IGA Lionel St          | 4.3km (6min)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |                           | 500- 1,000m <sup>2</sup>                                        |                           |                      |                                  | ...                  |                                  |          |                      |            |  |                             |  |  |  |     |                  |              |  |                             |  |  |  |     |                       |              |  |                             |  |  |  |     |                     |              |  |                             |  |  |  |     |                    |              |  |                            |  |  |  |     |                   |              |  |                          |  |  |  |     |               |              |  |                          |  |  |  |     |

| ACCC Reasons Ref      | Paragraphs that are uncontested (extract)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |                                        |                           |                                        |                    |                   |                    |                      |        |         |                |          |            |                       |         |         |                     |         |          |                    |          |         |                   |         |         |               |            |          |         |          |         |         |          |            |          |         |        |         |         |          |            |          |         |          |         |         |          |            |          |         |        |         |         |          |            |          |         |
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| 2.35                  | <p>Supermarkets in Kalgoorlie have varying trading hours. Coles and Woolworths are subject to trading hour limitations, while the other four independent supermarkets in Kalgoorlie are not. Having longer trading hours is a valuable point of differentiation for independent supermarkets, particularly for mining and other shift workers who might prefer to shop outside 'standard' business hours.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |                                        |                           |                                        |                    |                   |                    |                      |        |         |                |          |            |                       |         |         |                     |         |          |                    |          |         |                   |         |         |               |            |          |         |          |         |         |          |            |          |         |        |         |         |          |            |          |         |          |         |         |          |            |          |         |        |         |         |          |            |          |         |
| 2.36                  | <p>Table 4 sets out the trading times for the 6 supermarkets in Kalgoorlie. The Proposed Supermarket will likely have similar trading hours to the existing Coles store.</p> <p>Statement of Reasons   Coles – supermarket and liquor site in Kalgoorlie, WA (SN-01008)</p> <p><b>Table 4 Opening hours of supermarkets in Kalgoorlie</b></p> <table><tr><th></th><th>Coles</th><th>Woolworths</th><th>Spudshed</th><th>IGA Lionel St</th><th>O'Connor Fresh IGA</th><th>Hannans FoodWorks</th></tr><tr><td>Monday</td><td>7am-7pm</td><td>7am-7pm</td><td>24 hours</td><td>4am-8:30pm</td><td>4am-10pm</td><td>4am-9pm</td></tr><tr><td>Tuesday</td><td>7am-7pm</td><td>7am-7pm</td><td>24 hours</td><td>4am-8:30pm</td><td>4am-10pm</td><td>4am-9pm</td></tr><tr><td>Wednesday</td><td>7am-7pm</td><td>7am-7pm</td><td>24 hours</td><td>4am-8:30pm</td><td>4am-10pm</td><td>4am-9pm</td></tr><tr><td>Thursday</td><td>7am-9pm</td><td>7am-9pm</td><td>24 hours</td><td>4am-9:30pm</td><td>4am-10pm</td><td>4am-9pm</td></tr><tr><td>Friday</td><td>7am-7pm</td><td>7am-7pm</td><td>24 hours</td><td>4am-9:30pm</td><td>4am-10pm</td><td>4am-9pm</td></tr><tr><td>Saturday</td><td>7am-6pm</td><td>7am-6pm</td><td>24 hours</td><td>4am-8:30pm</td><td>4am-10pm</td><td>4am-9pm</td></tr><tr><td>Sunday</td><td>8am-3pm</td><td>8am-3pm</td><td>24 hours</td><td>4am-8:30pm</td><td>4am-10pm</td><td>4am-9pm</td></tr></table> <p>Source: Company websites accessed 21 June 2025.</p> |                                        | Coles                     | Woolworths                             | Spudshed           | IGA Lionel St     | O'Connor Fresh IGA | Hannans FoodWorks    | Monday | 7am-7pm | 7am-7pm        | 24 hours | 4am-8:30pm | 4am-10pm              | 4am-9pm | Tuesday | 7am-7pm             | 7am-7pm | 24 hours | 4am-8:30pm         | 4am-10pm | 4am-9pm | Wednesday         | 7am-7pm | 7am-7pm | 24 hours      | 4am-8:30pm | 4am-10pm | 4am-9pm | Thursday | 7am-9pm | 7am-9pm | 24 hours | 4am-9:30pm | 4am-10pm | 4am-9pm | Friday | 7am-7pm | 7am-7pm | 24 hours | 4am-9:30pm | 4am-10pm | 4am-9pm | Saturday | 7am-6pm | 7am-6pm | 24 hours | 4am-8:30pm | 4am-10pm | 4am-9pm | Sunday | 8am-3pm | 8am-3pm | 24 hours | 4am-8:30pm | 4am-10pm | 4am-9pm |
|                       | Coles                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | Woolworths                             | Spudshed                  | IGA Lionel St                          | O'Connor Fresh IGA | Hannans FoodWorks |                    |                      |        |         |                |          |            |                       |         |         |                     |         |          |                    |          |         |                   |         |         |               |            |          |         |          |         |         |          |            |          |         |        |         |         |          |            |          |         |          |         |         |          |            |          |         |        |         |         |          |            |          |         |
| Monday                | 7am-7pm                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                | 7am-7pm                                | 24 hours                  | 4am-8:30pm                             | 4am-10pm           | 4am-9pm           |                    |                      |        |         |                |          |            |                       |         |         |                     |         |          |                    |          |         |                   |         |         |               |            |          |         |          |         |         |          |            |          |         |        |         |         |          |            |          |         |          |         |         |          |            |          |         |        |         |         |          |            |          |         |
| Tuesday               | 7am-7pm                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                | 7am-7pm                                | 24 hours                  | 4am-8:30pm                             | 4am-10pm           | 4am-9pm           |                    |                      |        |         |                |          |            |                       |         |         |                     |         |          |                    |          |         |                   |         |         |               |            |          |         |          |         |         |          |            |          |         |        |         |         |          |            |          |         |          |         |         |          |            |          |         |        |         |         |          |            |          |         |
| Wednesday             | 7am-7pm                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                | 7am-7pm                                | 24 hours                  | 4am-8:30pm                             | 4am-10pm           | 4am-9pm           |                    |                      |        |         |                |          |            |                       |         |         |                     |         |          |                    |          |         |                   |         |         |               |            |          |         |          |         |         |          |            |          |         |        |         |         |          |            |          |         |          |         |         |          |            |          |         |        |         |         |          |            |          |         |
| Thursday              | 7am-9pm                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                | 7am-9pm                                | 24 hours                  | 4am-9:30pm                             | 4am-10pm           | 4am-9pm           |                    |                      |        |         |                |          |            |                       |         |         |                     |         |          |                    |          |         |                   |         |         |               |            |          |         |          |         |         |          |            |          |         |        |         |         |          |            |          |         |          |         |         |          |            |          |         |        |         |         |          |            |          |         |
| Friday                | 7am-7pm                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                | 7am-7pm                                | 24 hours                  | 4am-9:30pm                             | 4am-10pm           | 4am-9pm           |                    |                      |        |         |                |          |            |                       |         |         |                     |         |          |                    |          |         |                   |         |         |               |            |          |         |          |         |         |          |            |          |         |        |         |         |          |            |          |         |          |         |         |          |            |          |         |        |         |         |          |            |          |         |
| Saturday              | 7am-6pm                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                | 7am-6pm                                | 24 hours                  | 4am-8:30pm                             | 4am-10pm           | 4am-9pm           |                    |                      |        |         |                |          |            |                       |         |         |                     |         |          |                    |          |         |                   |         |         |               |            |          |         |          |         |         |          |            |          |         |        |         |         |          |            |          |         |          |         |         |          |            |          |         |        |         |         |          |            |          |         |
| Sunday                | 8am-3pm                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                | 8am-3pm                                | 24 hours                  | 4am-8:30pm                             | 4am-10pm           | 4am-9pm           |                    |                      |        |         |                |          |            |                       |         |         |                     |         |          |                    |          |         |                   |         |         |               |            |          |         |          |         |         |          |            |          |         |        |         |         |          |            |          |         |          |         |         |          |            |          |         |        |         |         |          |            |          |         |
| 2.38                  | <p>When measured on an SFA basis, Coles' share in Kalgoorlie is approximately █% and Coles' and Woolworths' combined share is approximately █% (including all supermarkets in Kalgoorlie, regardless of size). ...</p> <p><b>Table 5 Market shares based on SFA in Kalgoorlie</b></p> <table><tr><th>Supplier</th><th>Status prior<sup>a</sup></th><th>With Proposed Supermarket<sup>a</sup></th></tr><tr><td>Coles Kalgoorlie</td><td></td><td></td></tr><tr><td>Proposed Supermarket</td><td></td><td></td></tr><tr><td>Combined Coles</td><td></td><td></td></tr><tr><td>Woolworths Kalgoorlie</td><td></td><td></td></tr><tr><td>Spudshed Kalgoorlie</td><td></td><td></td></tr><tr><td>O'Connor Fresh IGA</td><td></td><td></td></tr><tr><td>Hannans FoodWorks</td><td></td><td></td></tr><tr><td>IGA Lionel St</td><td></td><td></td></tr></table> <p>Source: ACCC analysis of information provided by market participants.<br/><sup>a</sup> Rounded to the nearest whole number.</p> <p>...</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 | Supplier                               | Status prior <sup>a</sup> | With Proposed Supermarket <sup>a</sup> | Coles Kalgoorlie   |                   |                    | Proposed Supermarket |        |         | Combined Coles |          |            | Woolworths Kalgoorlie |         |         | Spudshed Kalgoorlie |         |          | O'Connor Fresh IGA |          |         | Hannans FoodWorks |         |         | IGA Lionel St |            |          |         |          |         |         |          |            |          |         |        |         |         |          |            |          |         |          |         |         |          |            |          |         |        |         |         |          |            |          |         |
| Supplier              | Status prior <sup>a</sup>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              | With Proposed Supermarket <sup>a</sup> |                           |                                        |                    |                   |                    |                      |        |         |                |          |            |                       |         |         |                     |         |          |                    |          |         |                   |         |         |               |            |          |         |          |         |         |          |            |          |         |        |         |         |          |            |          |         |          |         |         |          |            |          |         |        |         |         |          |            |          |         |
| Coles Kalgoorlie      |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                        |                           |                                        |                    |                   |                    |                      |        |         |                |          |            |                       |         |         |                     |         |          |                    |          |         |                   |         |         |               |            |          |         |          |         |         |          |            |          |         |        |         |         |          |            |          |         |          |         |         |          |            |          |         |        |         |         |          |            |          |         |
| Proposed Supermarket  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                        |                           |                                        |                    |                   |                    |                      |        |         |                |          |            |                       |         |         |                     |         |          |                    |          |         |                   |         |         |               |            |          |         |          |         |         |          |            |          |         |        |         |         |          |            |          |         |          |         |         |          |            |          |         |        |         |         |          |            |          |         |
| Combined Coles        |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                        |                           |                                        |                    |                   |                    |                      |        |         |                |          |            |                       |         |         |                     |         |          |                    |          |         |                   |         |         |               |            |          |         |          |         |         |          |            |          |         |        |         |         |          |            |          |         |          |         |         |          |            |          |         |        |         |         |          |            |          |         |
| Woolworths Kalgoorlie |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                        |                           |                                        |                    |                   |                    |                      |        |         |                |          |            |                       |         |         |                     |         |          |                    |          |         |                   |         |         |               |            |          |         |          |         |         |          |            |          |         |        |         |         |          |            |          |         |          |         |         |          |            |          |         |        |         |         |          |            |          |         |
| Spudshed Kalgoorlie   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                        |                           |                                        |                    |                   |                    |                      |        |         |                |          |            |                       |         |         |                     |         |          |                    |          |         |                   |         |         |               |            |          |         |          |         |         |          |            |          |         |        |         |         |          |            |          |         |          |         |         |          |            |          |         |        |         |         |          |            |          |         |
| O'Connor Fresh IGA    |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                        |                           |                                        |                    |                   |                    |                      |        |         |                |          |            |                       |         |         |                     |         |          |                    |          |         |                   |         |         |               |            |          |         |          |         |         |          |            |          |         |        |         |         |          |            |          |         |          |         |         |          |            |          |         |        |         |         |          |            |          |         |
| Hannans FoodWorks     |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                        |                           |                                        |                    |                   |                    |                      |        |         |                |          |            |                       |         |         |                     |         |          |                    |          |         |                   |         |         |               |            |          |         |          |         |         |          |            |          |         |        |         |         |          |            |          |         |          |         |         |          |            |          |         |        |         |         |          |            |          |         |
| IGA Lionel St         |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                        |                           |                                        |                    |                   |                    |                      |        |         |                |          |            |                       |         |         |                     |         |          |                    |          |         |                   |         |         |               |            |          |         |          |         |         |          |            |          |         |        |         |         |          |            |          |         |          |         |         |          |            |          |         |        |         |         |          |            |          |         |
| 4.1                   | <p>Coles Supermarkets voluntarily notified the Acquisition under the new merger regime prior to the mandatory notification requirements commencing on 1 January 2026. The effective notification date was 27 November 2025.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                        |                           |                                        |                    |                   |                    |                      |        |         |                |          |            |                       |         |         |                     |         |          |                    |          |         |                   |         |         |               |            |          |         |          |         |         |          |            |          |         |        |         |         |          |            |          |         |          |         |         |          |            |          |         |        |         |         |          |            |          |         |
| 4.2                   | <p>On 29 January 2026 the ACCC decided the notification would be subject to Phase 2 review and published its decision to this effect. On 6 March 2026, the ACCC provided its Notice of Competition Concerns (NOCC) for this matter to Coles and published a summary of the NOCC on the acquisitions register.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |                                        |                           |                                        |                    |                   |                    |                      |        |         |                |          |            |                       |         |         |                     |         |          |                    |          |         |                   |         |         |               |            |          |         |          |         |         |          |            |          |         |        |         |         |          |            |          |         |          |         |         |          |            |          |         |        |         |         |          |            |          |         |
| 4.3                   | <p>The ACCC decided it would extend the timeline for the review three times when Coles Supermarkets took longer than 10 business days to respond to a section 155 notice, by:</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |                                        |                           |                                        |                    |                   |                    |                      |        |         |                |          |            |                       |         |         |                     |         |          |                    |          |         |                   |         |         |               |            |          |         |          |         |         |          |            |          |         |        |         |         |          |            |          |         |          |         |         |          |            |          |         |        |         |         |          |            |          |         |

| ACCC<br>Reasons<br>Ref | Paragraphs that are uncontested (extract)                                                                                                                                                                                                                                                                                                                           |
|------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                        | <ul style="list-style-type: none"> <li>• 6 business days on 13 May 2026;</li> <li>• 4 business days on 18 May 2026; and</li> <li>• 4 business days on 25 May 2026.</li> </ul>                                                                                                                                                                                       |
| 4.4                    | The end of the determination period is 2 July 2026.                                                                                                                                                                                                                                                                                                                 |
| 5.1                    | The ACCC considers that, for the purposes of assessing the Acquisition, the relevant area of competition is the retail supply of groceries by supermarkets in Kalgoorlie (the <b>Kalgoorlie market</b> ).                                                                                                                                                           |
| 5.3                    | Market definition is a purposive tool used to help assess whether an acquisition might have anti-competitive effects. ...                                                                                                                                                                                                                                           |
| 5.4                    | For any given supermarket in Kalgoorlie, the extent of competitive rivalry it faces from other participants will depend on a range of factors, including, for example, how similar or differentiated its product offering is and its location.                                                                                                                      |
| 5.6                    | The ACCC considers the relevant product dimension is the retail supply of groceries by supermarkets.                                                                                                                                                                                                                                                                |
| 5.8                    | Unlike other retailers of groceries, such as category specialists, supermarkets offer consumers the convenience of a 'one stop-shop' service for their grocery needs, by retailing a broad range of grocery products.                                                                                                                                               |
| 5.14                   | Kalgoorlie has a ... fly-in-fly-out (FIFO) worker population. This characteristic of the local population does not alter the relevant product dimension of the market. While FIFO worker grocery requirements may differ from the resident population, this is likely reflected in consumer demand ...                                                              |
| 5.15                   | In considering the relevant geographic market, the ACCC has sought to assess the willingness of customers to travel to purchase groceries at supermarkets in and around Kalgoorlie. The Proposed Supermarket is located in Kalgoorlie, a remote regional city, where the nearest supermarket outside of Kalgoorlie is an IGA Local Grocer 38km away, in Coolgardie. |
| 5.17                   | The ACCC considers that the geographic market is Kalgoorlie, including because consumers value convenience and proximity when doing their grocery shopping. In the Supermarkets Inquiry Report, for consumers who have a choice of main grocery store, convenience was a key factor affecting this choice, and location was a key factor influencing convenience.   |
| 5.20                   | The ACCC does not consider that the geographic market is likely to be any narrower than Kalgoorlie. The evidence provided to the ACCC supports the view that while proximity to supermarkets is important to customers in Kalgoorlie, they have a willingness to travel within Kalgoorlie to visit their                                                            |

| ACCC<br>Reasons<br>Ref | Paragraphs that are uncontested (extract)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
|------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                        | preferred supermarket.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 6.2                    | In the future with the Acquisition, Coles will invest in the Proposed Supermarket, increasing grocery retailing capacity in Kalgoorlie. While it is expected to have largely the same product range and prices as the existing Coles supermarket... .                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 6.5                    | The object of the Act is to enhance the welfare of Australians through the promotion of competition and fair trading, and provision for consumer protection. This object is given force through, amongst other provisions, the provisions of the CCA which in effect are directed to prohibiting acquisitions that will or are likely to have the effect of substantially lessening competition in a market. These provisions seek to ensure the competitive process enhances the welfare of Australians through the economically efficient use of resources and allocation of benefits to consumers.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 6.6                    | Consumers demand groceries, which are supplied by supermarkets. Supermarkets compete for that customer demand through price, product range and quality, store quality and customer service. Each of these factors creates value for customers, as supermarkets seek to differentiate themselves to attract customers.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 6.7                    | ... With more effective competitors in any local market, competitors will have to undertake more competitive activity to succeed, and their customers will benefit from having better stores to visit, product ranges and product qualities more suited to them, prices they value, and higher customer service. ...                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 6.8                    | <p>Supermarkets compete to attract customers across the following dimensions:</p> <ul style="list-style-type: none"> <li>• <b>Planning and development:</b> Developers propose to develop land and construct buildings and associated works suitable to lease to a supermarket operator. It is important for supermarket operators that the location of the development and its design is attractive to customers who value proximity to where they shop. It is also beneficial for developments to have a mix of tenants (e.g. a Coles and an ALDI, or an IGA and a Chemist Warehouse), as that gives more reasons for customers to visit and shop at that site.</li> <li>• <b>Supermarket fit-out:</b> Supermarket operators commit to long-term leases for that land and associated building, and invest in fixtures. They make their own investments to fit out the supermarket, which involve installing shelves, fridges, checkouts, and other assets. Supermarket operators choose buildings and fit-out designs that they believe would be valued by potential customers.</li> <li>• <b>Product range and pricing choices:</b> Supermarket operators choose product ranges to supply to potential customers in their supermarkets and choose prices at which to sell those products. Large national chains may operate more efficiently if they centralise those choices, which results in very similar ranges and prices across many local markets. Smaller local competitors can generate value by being more flexible with the product ranges and prices to better suit and adapt to the demand of the local markets they supply. Product range and price choices are dynamic and important levers for supermarket operators to attract potential customers to shop at their supermarket rather than a competitor's. In addition to sourcing from smaller and/or local suppliers, supermarket operators can prepare their own products, particularly by butchering meat or preparing fresh meals.</li> </ul> |

| ACCC<br>Reasons<br>Ref | Paragraphs that are uncontested (extract)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
|------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                        | <ul style="list-style-type: none"> <li>• <b>Customer service levels:</b> Supermarket operators choose the level of service they provide for customers shopping at their stores. Customer service is also an important factor in attracting customers. Customer service is costly and involves hiring additional staff or contractors for a range of jobs, including operating checkouts, stocking shelves, assisting customers, cleaning floors and providing security.</li> </ul>                                                                                                   |
| 6.9                    | There are substantial fixed costs associated with operating a supermarket, including lease commitments and fit-out costs. Therefore, it is important that supermarket operators provide an overall value proposition to customers – taking into account all the factors above and more – to attract them to their store and encourage them to purchase products while there. If they cannot attract enough customers, they can become unprofitable and will likely exit the market. Exiting stores may be replaced by new entrants that could provide better value to customers. ... |
| 6.12                   | Based on the evidence before it, the ACCC considers that Coles and Woolworths are each other's closest competitors in Kalgoorlie ... .                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 6.13                   | Coles and Woolworths are both national full-line supermarkets with relatively new stores in Kalgoorlie ... .                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 6.16                   | Coles and Woolworths both set prices on a national or state-wide basis, subject to limited exceptions.                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 6.17                   | In doing so, Coles [REDACTED] ...                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 6.20                   | Coles and Woolworths compete on the quality of their stores. Coles has a large format full-line supermarket in central Kalgoorlie that forms part of its national network of stores. This new store replaced two relatively old stores in 2021.                                                                                                                                                                                                                                                                                                                                      |
| 6.21                   | Woolworths most recently refurbished its full-line supermarket in central Kalgoorlie in [REDACTED]. This store forms part of Woolworths' national network of stores. ...                                                                                                                                                                                                                                                                                                                                                                                                             |
| 6.22                   | While moving from a two-store strategy to a one-store strategy in Kalgoorlie, Coles also identified [REDACTED]. Coles identified [REDACTED].                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 6.23                   | Coles has a process of identifying and monitoring [REDACTED]. [REDACTED] ...                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 6.24                   | Coles and Woolworths also compete on customer service. ... . Coles [REDACTED] [REDACTED]. Coles also [REDACTED]. Both                                                                                                                                                                                                                                                                                                                                                                                                                                                                |

| ACCC<br>Reasons<br>Ref | Paragraphs that are uncontested (extract)                                                                                                                                                                                                                                                                                                                                                            |
|------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                        | Coles and Woolworths are subject to restricted trading hours under Western Australian regulations and set similar trading hours, as set out in Table 4.                                                                                                                                                                                                                                              |
| 6.28                   | <p>In a statement from Coles' Head of Range, Space and Systems, Coles provides detailed information on how it determines range [REDACTED]. Factors considered in ranging decisions [REDACTED] include, [REDACTED]. The evidence from Coles' Head of Range, Space and Systems is that:</p> <ul style="list-style-type: none"> <li>• [REDACTED]</li> <li>• [REDACTED]</li> <li>• [REDACTED]</li> </ul> |
| 6.29                   | Information from Coles and Woolworths indicates that, subject to few exceptions, they generally set prices on a national basis for the majority of their groceries and on a state-wide basis for fresh produce.                                                                                                                                                                                      |
| 6.31                   | <p>The evidence before the ACCC is that Coles and Woolworths closely monitor each other's prices:</p> <ul style="list-style-type: none"> <li>• Coles [REDACTED], with approximately [REDACTED] SKU matches. Woolworths [REDACTED].</li> <li>• [REDACTED], and [REDACTED]. Coles [REDACTED].</li> </ul>                                                                                               |
| 6.33                   | <p>Coles also monitors [REDACTED]. The ACCC also understands that Coles monitors [REDACTED].</p>                                                                                                                                                                                                                                                                                                     |
| 6.34                   | <p>Coles' General Manager - WA considers in Western Australia [REDACTED].</p>                                                                                                                                                                                                                                                                                                                        |

| ACCC<br>Reasons<br>Ref | Paragraphs that are uncontested (extract)                                                                                                                                                                                                                                                                                                                                                                                           |
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| 6.36                   | O'Connor Fresh IGA ... is co-located with a Chemist Warehouse, a Liquor Barons store and a car wash. It is close to schools, a recreation centre and the Kalgoorlie-Boulder airport. As shown in Table 3 above, it has a smaller floor space than Coles and Woolworths but nevertheless offers a significant range of groceries for customers ( ).                                                                                  |
| 6.37                   | O'Connor Fresh IGA makes pricing and ranging decisions ( ). For example, it ( )<br>( ) it ( ) and in relation to those SKUs, ( ).                                                                                                                                                                                                                                                                                                   |
| 6.40                   | Spudshed is an independent supermarket operator, with 19 supermarkets throughout Western Australia. It opened its Kalgoorlie store in November 2025 in an established shopping centre with other small retailers, including a chemist. Spudshed took over the space formerly occupied by IGA Hannans Fresh, which in turn was occupied by Coles before that.                                                                        |
| 6.41                   | Spudshed sets prices ( ). It focusses on fresh foods and is generally perceived to be a discounter, and is positioned strongly within the fresh and bulk-purchase segments. ( )                                                                                                                                                                                                                                                     |
| 6.45                   | ... ( )                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 6.47                   | Hannans FoodWorks ... estimated SFA is less than ( ).                                                                                                                                                                                                                                                                                                                                                                               |
| 6.49                   | IGA Lionel St is an independent supermarket with SFA less than ( ). ...                                                                                                                                                                                                                                                                                                                                                             |
| 6.48                   | The evidence before the ACCC is that Hannans FoodWorks responded to Spudshed's entry by launching an online store and delivery service. Hannans FoodWorks bought a small, refrigerated utility vehicle that it uses to make deliveries. Hannans FoodWorks submitted that it will charge \$10 delivery fees, while Coles and Woolworths charge \$15.                                                                                 |
| 6.58                   | It is also important to note that the ultimate question before the ACCC is one of the likely effect of the acquisition on competition in the market, not simply the impact on a competitor. Nonetheless, the impact on competitors, whether that be raising barriers to entry and expansion, or leading to the diminution of competition because of the exit of a competitor, is a relevant consideration to the ultimate question. |
| 6.63                   | The evidence before the ACCC is that the Acquisition will have a material impact on Coles' competitors' sales. As the ( ) the Relevant Independent is expected to be impacted the most by the Acquisition (as a proportion of its                                                                                                                                                                                                   |

| ACCC<br>Reasons<br>Ref | Paragraphs that are uncontested (extract)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
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|                        | sales) ...                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 6.67                   | Following the Acquisition, Coles intends to establish the Proposed Supermarket with an anticipated opening date of [REDACTED]. An input to Coles' Business Case is an analysis that estimated where the Proposed Supermarket's revenue would come from (Source of Sales Analysis), including Coles' existing store and all other competitors' stores.                                                                                                                                                                                                                                                                                                                                       |
| 6.118                  | In its analysis, FTI forecasts the Relevant Independent's lease costs for its supermarket to be \$[REDACTED]. The Second Samuel Report [REDACTED]. The Relevant Independent's GLA in its lease agreement is identified as [REDACTED] m <sup>2</sup> , indicating a lease cost of \$[REDACTED]/m <sup>2</sup> per annum.                                                                                                                                                                                                                                                                                                                                                                     |
| 6.119                  | The lease cost forecast by FTI appears to [REDACTED] market rates. Coles' lease cost for the Proposed Supermarket and adjacent liquor store is \$[REDACTED]/m <sup>2</sup> , and Coles analogue stores have a lease cost ranging from \$[REDACTED]/m <sup>2</sup> to \$[REDACTED]/m <sup>2</sup> . Coles also provided the ACCC with a summary of lease costs for stores in other regional towns, ranging from \$[REDACTED]/m <sup>2</sup> to \$[REDACTED]/m <sup>2</sup> . Coles provided another list of lease costs for select supermarkets, one of which was \$[REDACTED]/m <sup>2</sup> , with the other four ranged from \$[REDACTED]/m <sup>2</sup> to \$[REDACTED]/m <sup>2</sup> . |
| 6.139                  | In considering the Acquisition's likely impact on the continued operation of an effective competitor, the inquiry does not end with considering the potential impact on the current operator. ...                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 6.140                  | It is important to continue to consider the likely future use of the Relevant Independent's assets in circumstances where the Relevant Independent is unlikely to be financially viable under current ownership. Mr Davis, engaged by Coles, also considers this is a relevant consideration, stating the importance of considering the extent to which the underlying supermarket assets are likely to remain in use.                                                                                                                                                                                                                                                                      |
| 6.144                  | The ACCC does not consider that the FTI Report, or any other report on issues of this kind, is able to predict the future. There are inherent uncertainties in analyses involving forecasts and a range of possible outcomes may be likely — the spectrum of potential outcomes set out in the FTI Report demonstrates this.                                                                                                                                                                                                                                                                                                                                                                |
| 6.149                  | Fundamentally, however, the ACCC agrees with Mr Davis, that the inquiry ought to not conclude at this point, and that further consideration of the potential future use of the assets is important. The ACCC's consideration of this issue is set out below.                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 6.156                  | [REDACTED]                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 6.166                  | There are many possible ways to benchmark supermarket prevalence and capacity in regional towns. The ACCC has taken into account Coles' view and not relied on benchmarking analysis as evidence of oversupply in Kalgoorlie in considering the likelihood of exit of the Relevant Independent                                                                                                                                                                                                                                                                                                                                                                                              |

| ACCC<br>Reasons<br>Ref | Paragraphs that are uncontested (extract)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
|------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                        | caused by the Proposed Supermarket.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 6.180                  | The Relevant Independent generates substantial revenue (see Table 3), demonstrating its offer is attractive to Kalgoorlie shoppers, and is expected to continue to generate revenue in the future without the Acquisition. The Relevant Independent's success and sustainability occurs in an already-competitive environment, facing competition from other existing competitors.                                                                                                                                                                                                          |
| 6.182                  | The Relevant Independent is able to source, distribute and transport its products ready for sale at its Kalgoorlie store at an Operating Gross Profit Margin of [REDACTED]%, [REDACTED] at [REDACTED]%. ...                                                                                                                                                                                                                                                                                                                                                                                 |
| 6.194                  | It is necessary to consider the facts and circumstances pertaining to the Acquisition and the competitive processes in the market which the Acquisition is intended to occur, noting that the competitive context in grocery retailing markets in Australia are varied and can involve unique or distinct characteristics.                                                                                                                                                                                                                                                                  |
| 6.210                  | The threat of new entry may mean that an acquisition will not substantially lessen competition if that entry is likely, timely and sufficient in quality and quantity to make up for the loss in competition.                                                                                                                                                                                                                                                                                                                                                                               |
| 6.215                  | ... the timeframes for entry can be lengthy given the planning and development process and the costs of developing the land, building and associated works are substantial.                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 6.219                  | That said, in addition to availability of suitable sites, and the time and cost of construction, developing a supermarket is subject to planning requirements, including the need for development applications to be approved. As outlined in the Supermarkets Inquiry Report, Coles submitted in the public hearings that the planning and development process 'might take anywhere between five to seven years potentially' if 'things [are] going well'. In relation to another acquisition of a lease in Victoria, Coles stated preconstruction planning will typically take [REDACTED] |
| 6.220                  | Once suitable land is identified and approved for development, the land must be developed, buildings constructed and associated landscape, carpark and street work undertaken. This likely requires substantial capital outlay. While this cost is typically incurred by a third-party developer, [REDACTED], the supermarket operators are required to commit to a lease with the developer that compensates the developer for funding those costs. For the Proposed Supermarket [REDACTED]                                                                                                |
| 6.221                  | In some cases, Coles develops its own sites. For example, in planning a new supermarket in Dalyellup, Western Australia, Coles estimated [REDACTED]. Once the land is developed and buildings constructed, the supermarket operator must incur the upfront capital costs of fitting out the supermarket. The upfront capital cost of the Proposed Supermarket is [REDACTED].                                                                                                                                                                                                                |

| ACCC<br>Reasons<br>Ref | Paragraphs that are uncontested (extract)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
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| 6.222                  | Some of these costs and time can be avoided by a new entrant acquiring a lease for an existing unoccupied supermarket building. Spudshed took this path by acquiring the lease for a building previously occupied by an IGA and before that Coles. ...                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 6.224                  | Upfront costs of developing a new supermarket are expected to differ between supermarket operators with different business models and land and building requirements. ...                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 6.227                  | While the number of supermarkets and supermarket operators in Kalgoorlie has fluctuated over time, it is clear that SFA in Kalgoorlie has also increased significantly over time.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 6.228                  | In the last two decades, for example, Coles Kalgoorlie, IGA Lionel St, O'Connor Fresh IGA, Hannans Foodworks, Coles Kalgoorlie, IGA Hannans Fresh and Spudshed Kalgoorlie have entered (in 2006, 2008, 2019, 2021, 2021 and 2025 respectively), while Coles City, Coles Hannans and IGA Hannans Fresh have closed (in 2021, 2021 and 2025 respectively). Throughout this period, Woolworths has had the same store in Kalgoorlie and Coles has had at least one store.                                                                                                                                                                                                                                                                |
| 6.229                  | <p>Figure 5 below illustrates this historical entry and exit of supermarkets and the corresponding growth in SFA that has occurred in Kalgoorlie since 1969. While many new supermarkets are replacements of old supermarkets, it is clear that SFA in Kalgoorlie has increased significantly over time. Over the same period, Kalgoorlie's resident population has increased from approximately 21,000 to approximately 31,000.</p> <p>Figure 5 History of total supermarket floor space and population in Kalgoorlie</p>  <p>Source: ACCC analysis of information provided by market participants and ABS population estimates.<sup>10</sup></p> |
| 6.232                  | Larger full-line supermarkets, given their greater upfront fixed costs, would require higher volumes of demand in order to generate enough revenue to be profitable, than smaller format stores.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 6.241                  | The ACCC has been informed that another independent supermarket operator has been considering entering Kalgoorlie. The ACCC understands that this operator, whose position is highly confidential and commercially sensitive, has [REDACTED]                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 6.246                  | On the other hand, if the Relevant Independent were to exit, this is likely mitigate, to at least some extent, the impact of the Proposed Supermarket on existing competitors' sales and profitability, since the Relevant Independent's customers would seek alternative supermarkets for their shopping ...                                                                                                                                                                                                                                                                                                                                                                                                                         |

| ACCC<br>Reasons<br>Ref | Paragraphs that are uncontested (extract)                                                                                                                                                                                                                                                         |
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| 6.250                  | While existing competitors may have an incentive to seek to recoup sales lost to the Proposed Supermarket, any decisions in relation to whether to open a new store will ultimately turn on whether the return from doing so is sufficient ... .                                                  |
| 7.2                    | The ACCC considers the product range and prices at the Proposed Supermarket will be substantially the same as at the existing Kalgoorlie store ... .                                                                                                                                              |
| 7.7                    | The Proposed Supermarket is a 5-to-10-minute drive from the existing Coles supermarket so some Kalgoorlie consumers will see incremental time and travel cost savings, although some others will have to drive further for their shop, if the Relevant Independent exits the market.              |
| 7.8                    | Some Kalgoorlie consumers will choose the Proposed Supermarket over where they currently shop.<br>[REDACTED]                                                                                                                                                                                      |
| 7.10                   | The Proposed Supermarket may also provide [REDACTED]. The ACCC understands that Coles will [REDACTED]                                                                                                                                                                                             |
| 7.13                   | Competitors in the Kalgoorlie market may respond competitively to Coles opening a second supermarket in Kalgoorlie.                                                                                                                                                                               |
| 7.16                   | All incumbent supermarkets in Kalgoorlie are likely to lose revenue to Coles if the Proposed Supermarket proceeds. For example, [REDACTED].                                                                                                                                                       |
| 7.18                   | The market in Kalgoorlie recently experienced the entry of a new supermarket operator: Spudshed. Woolworths responded to Spudshed by conducting a one-off special price promotion for certain products over approximately 4 weeks. Coles' response to Spudshed's opening [REDACTED].              |
| 7.19                   | Market structure, including the number of competitors and the degree of concentration, is an indicator of the state of competition in a market. An acquisition in a concentrated market can raise competition concerns, particularly where the acquisition removes an effective local competitor. |
| 7.22                   | Competition is a dynamic process and is about more than market concentration. ...                                                                                                                                                                                                                 |
| 7.23                   | The Relevant Independent is proximate and convenient to local consumers. It is near [REDACTED]. While it has a smaller floor space than Coles and Woolworths, it offers a large range of groceries to customers ... .                                                                             |

| ACCC<br>Reasons<br>Ref | Paragraphs that are uncontested (extract)                                                                                                                                                       |
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| 7.24                   | ... the Relevant Independent ... stocks approximately [REDACTED] SKUs, [REDACTED] of which are supplied by Metcash. ...                                                                         |
| 7.26                   | The Relevant Independent ... is not subject to the restricted trading hours that apply to Coles and Woolworths under Western Australian legislation. ...                                        |
| 7.27                   | The Relevant Independent makes pricing decisions [REDACTED]                                                                                                                                     |
| 7.28                   | ... It [REDACTED] ...                                                                                                                                                                           |
| 7.29                   | ... It also [REDACTED].                                                                                                                                                                         |
| 7.31                   | The Relevant Independent benefits from [REDACTED]. In the 2025 financial year, [REDACTED].                                                                                                      |
| 7.32                   | <p>The programs include:</p> <ul style="list-style-type: none"> <li>• [REDACTED]</li> <li>• [REDACTED]<br/>and</li> <li>• [REDACTED]</li> </ul>                                                 |
| 7.34                   | ... the Relevant Independent ... [REDACTED]. By comparison, [REDACTED] This indicates an ability to competitively attract and retain customers.                                                 |
| 7.38                   | Coles [REDACTED]. It currently sets its prices on a state-wide or national basis, with some exceptions where there is flexibility to change prices locally, albeit limited in scope and degree. |

| ACCC<br>Reasons<br>Ref | Paragraphs that are uncontested (extract)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
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| 7.40                   | Coles documents also show [REDACTED].                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 7.42                   | <p>...</p> <ul style="list-style-type: none"> <li>• Woolworths [REDACTED].</li> <li>• [REDACTED] ....</li> </ul>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 7.43                   | Supermarket operators in Kalgoorlie compete on the basis of customer service. ...                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 7.44                   | ... the Relevant Independent ... [REDACTED]                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 7.46                   | The ACCC considers that product range and quality is an important dimension of competition in Kalgoorlie. ... . Coles and Woolworths tailor their product ranges to local markets such as Kalgoorlie to an extent, but do not respond to local competition in Kalgoorlie. ...                                                                                                                                                                                                                                                                                                                              |
| 7.52                   | <p>Coles has a relatively new store in central Kalgoorlie that forms part of its national network of stores. Coles' decision to open that store was in part due to the acknowledgment that the store location and amenities surrounding the store would positively contribute to Coles' revenue and compete against rival supermarkets in Kalgoorlie. A Coles internal document recognises Coles Kalgoorlie for the following features:</p> <ul style="list-style-type: none"> <li>• [REDACTED],</li> <li>• [REDACTED],</li> <li>• [REDACTED]</li> <li>• [REDACTED], and</li> <li>• [REDACTED].</li> </ul> |
| 7.53                   | Coles typically reinvests in its stores every [REDACTED] years, depending on [REDACTED]                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |